

Westhampton Board of Health
June 8, 2026

Katch Bacheller, Chair
Robby Armenti
Heather Livingston
Brian Chapdelaine, Health Agent
Sydney Lewandowski, Health inspector
Marylou Burgess (guest)
Doug Finn (guest)

Agenda item 1: Letter from Barry Searle, 70 Peninsula Road, for wells water supply proximity

- Looking for a variance for their own well; leach field 53 feet from owner's well and septic 43 feet from owner's well. Looking to install a pre-treatment tank. Effluent goes into treatment pod with filters before going into the septic tank. Letter from B. Searle in BoH office box; SL will pick up.
- KB: Need a public hearing on proposed septic and well regulations; will put the public hearing on the agenda for July 13, 2026 meeting.

Agenda item 2: Approval of Minutes.

- RA moved to accept; HL seconded
- None opposed; motion passed

Agenda item 3: Public input opportunity

- MB noted that they can't continue working on septic at this time.
- SL reported that septic permit lasts 3 years, so there's no urgency to complete the work from the BoH perspective.

Reports: BC has been promoted to Health Director.

225 NW Road (See FHD update for additional detail)

- BC went by for inspection, no one was home again. Front door steps are missing; platform seems unsafe, but nothing from outside appears condemnable. Door was wide open, unattended. Significant documented efforts to gain entry to the house; BoH wouldn't be liable because BC has done due diligence to gain access.
- Bri recommends pursuing an attorney w/ Housing Court. KB doesn't support legal approach.
- BC says one year is not an uncommon length of time; hoarding situations can take years to access; not opposed to continuing to reach out in the meantime. BC believes it would probably be condemnable if he were to gain access to the inside of the home.
- KB asked what would be the cost if we went through Housing Court.
- BC has gone in front of judge or mediated in the past; Housing Court wants municipalities to bring legal representation and not just the inspector
- HL noted that although BC has said that there is nothing from the outside that is condemnable, we need to research BoH's liability if something happens to the family. SL

recommended reviewing MAHB information because they address board liability re: housing.

- BC will try to connect them with services, including coordinating a visit from Lily.

Outlook Farm

- Employee bathroom now functioning, can continue operations while they have an accessible bathroom
- They've fixed their handwashing station; some of the larger things can be tabled for the time being but they need to be done.

61 Chesterfield Road septic permit

- Brian Belicki (designer) hasn't heard from homeowner since he submitted the plan in 2023. It was a voluntary upgrade—they were trying to sell house but didn't move forward.
- SL has heard reports of a failed septic system. Suggest BoH archive the old septic plan as it's now past the three-year approved timeframe. SL will put an order in for a title 5 inspection.

360 Main Road

- BC reported that over preceding week, he received a lot of complaints about strong sewer smell from 360 Main Road. Was told owner was storing a large amount of bird feces for fertilizer.
- BC drove by on morning of 8 June and it did smell like a farm. Westhampton is a right to farm community, but it only applies to commercial farming and agricultural operations. Owner doesn't appear to have agricultural operations. Nuisance odors have to be constant and consistent.
- The smell started last week; complainant believes the odor is diminishing because they've likely spread some over the field. BC plans to go over a few times over a couple of weeks to monitor the situation.

Other inspections

- City did school inspections and church kitchen inspection over the last month; church kitchen needs a few things fixed before they get food safety certificates.
- SL conducted a title 5 inspection on It's Pawsible on 8 June. SL noted it was an "abrasive inspection" that had to be canceled and rescheduled. The system looks good but SL will do another inspection next week. Will give Board an update if system fails or passes.
- The kennel is not connected to the septic system, but has a special permit from the ZBA. No plumbing or drainage. That's not transferrable to the house. The house is up for sale; it may change the use.
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Septic and well regulations draft

- KB asked why are we rewriting them? SL noted that the Town allocated SME time for Glen and SL to work on private septic regs; asked the SME project to fund Glen to work with SL.
- Fran and Mike (FHD) may have been attempting coordination among the towns.

- SL can't find other FHD towns' septic and well regulations, except Goshen; private wells are pulled from the Massachusetts model regulations. SL indicated that Glen want to revise the well setback to 100; 150 makes it harder for designers in lake areas.
- If well setback is the most important thing, Exec. Committee needs to go through regs and 310CMR and follow up with SL afterwards.
- KB indicated that Mike Archbald should be on the Exec. Committee call as well, so we'll have to post an agenda.
- HL asked was the request to Glen to update the minimum standards, or propose best practices?
- SL shared that the request to Glen was to regionalize well/septic requirements.

Body Art Regulations

- Tabled; date not set to revisit

Battery storage regulations coordinating with other Westhampton and area groups

- Battery storage regulations are the only resource a town has to say "no" to the state.
- DF: State is strongly pushing a series of regulations that would allow BoHs to unilaterally shut down battery energy storage. Attorney General is shutting down any attempt to regulate solar, wind, battery storage.
- SL: AG doesn't govern BoHs. Would go to state judicial court if that came up.
- RA requested these draft regulations appear earlier in the next agenda so we could give it more time for review.

Next meeting, July 13, 2026, at 5:45 p.m.

Meeting adjourned at 6:45 p.m.

Respectfully submitted,

Heather Livingston